



## POLICE DEPARTMENT

May 1, 2025

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

### POLICE COMMISSIONER'S PENALTY DEPARTURE

**Re:** CCRB Case No. 202310368 (Incident Date: November 2, 2023) regarding Sergeant Kevin Weber, Tax No. 948439 (PODS Case No. C-033575)

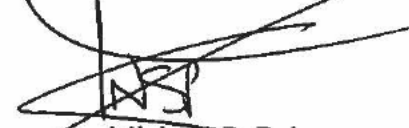
Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the substantiated allegation against Sergeant Kevin Weber.

The Police Commissioner has determined that Sergeant Weber's warning to the complainant that he would receive a summons from the precinct if he did not comply and re-enter his vehicle, was proper. Sergeant Weber stated his purpose in ordering the complainant to get back into his vehicle or he would be taken to the precinct, was to obtain compliance due to safety concerns, as the positions of both the officers and the complainant on the roadway put them at risk. Officers instructed the complainant numerous times to re-enter his vehicle, but he refused to comply. Sergeant Weber attempted to de-escalate the situation and obtain compliance so the summons could be issued on scene, rather than bringing the complainant to the precinct. In this case, to issue discipline would not be in the interest of justice.

Therefore, based on the above, the Police Commissioner directs that Sergeant Weber receive no disciplinary action for the sole substantiated allegation.

Sincerely,

  
Michael P. Baker  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office

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